

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 23-01

SAMSUNG ELECTRONICS

AMERICA, INC.,

COMPLAINANT,

v.

SM LINE CORPORATION,

RESPONDENT.

**COMPLAINANT SAMSUNG ELECTRONICS AMERICA, INC.'S
MOTION FOR CONFIDENTIAL TREATMENT**

Complainant Samsung Electronics America, Inc. (“SEA”), by and through its attorneys Holland & Knight LLP, hereby move pursuant to the Federal Maritime Commission’s (“FMC” or the “Commission”) April 21, 2023 Initial Order and 5(b) of the Federal Maritime Commission’s Rules of Practice and Procedure (the “Rules” or individually, “Rule”), 46 C.F.R. 502.5(b), for confidential treatment of SEA’s Opposition to SM Line Corporation’s (“SM Line”) Renewed Motion for Leave to File Third-Party Complaint (“SEA’s Opposition”).

SEA’s Opposition references and discusses SM Line’s Service Agreements (“Agreements”) and the Service Contracts (“Contracts”) between SM Line and the proposed third-parties. SEA’s Opposition also reveals the identity of the proposed third-parties. Confidentiality

is necessary with regard to SEA's Opposition because the above referenced materials have been designated as confidential by SM Line in its Renewed Motion for Leave to File Third-Party Complaint, in addition to confidentiality concerns related to SEA-affiliated entities. *See* FMC Dkt No. 33. On November 20, 2023, SEA counsel conferred with SM Line counsel and confirmed that SEA would be filing its Opposition to SM Line's Renewed Motion on November 21, 2023.

Pursuant to Rule 5(b), SEA will file both a confidential and public version of SEA's Opposition. For the foregoing reasons, SEA respectfully requests that the materials and exhibits designated as confidential in SM Line's Renewed Motion and Referenced in SEA's Opposition, be kept confidential and not disclosed to the public.

Respectfully Submitted,

Dated: November 21, 2023

/s/ Chris Nolan

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document on counsel at the following email addresses:

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Executed: November 21, 2023

/s/ Kristine Little